

1 ENGROSSED HOUSE
2 BILL NO. 3131

By: West (Kevin) of the House

3 and

4 Hamilton of the Senate

5
6
7 [homeless shelter standards - Oklahoma Homeless
8 Shelter Safety and Accountability Act - minimum
9 statewide standards for providers receiving state-
10 administered funds and state-administered federal
11 funds - rulemaking authority - financial
12 transparency and aggregate reporting - complaint,
13 enforcement, and appeal procedures - local zoning
14 authority - advisory board - sunset -
15 noncodification - codification - effective date]
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19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law not to be
21 codified in the Oklahoma Statutes reads as follows:

22 This act shall be known and may be cited as the "Oklahoma
23 Homeless Shelter Safety and Accountability Act".
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1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1200 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Homeless shelter provider" means a public or private entity
6 operating a facility providing temporary overnight shelter to
7 individuals experiencing homelessness and receiving state-
8 administered funds or state-administered federal funds;

9 2. "Material safety event" means:

- 10 a. death not resulting from natural causes,
11 b. serious bodily injury requiring emergency transport or
12 hospitalization,
13 c. fire requiring response by a fire department,
14 d. violent felony offense reported to law enforcement, or
15 e. a condition presenting an imminent threat to life or
16 physical safety;

17 3. "On the premises" means within property under control of the
18 provider;

19 4. "State-administered federal funds" means federal funds
20 received by a state agency and distributed through grant, contract,
21 or subrecipient agreement; and

22 5. "State-administered funds" means funds appropriated by the
23 Legislature or otherwise disbursed by a state agency.
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1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1201 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Nothing in this act shall create, replace, alter, redefine,
5 or supersede any continuum of care established pursuant to federal
6 law or administered by the United States Department of Housing and
7 Urban Development.

8 B. Nothing in this act shall:

9 1. Establish a statewide continuum of care;

10 2. Replace or modify federal homeless management information
11 system (HMIS) governance structures; or

12 3. Alter coordinated entry systems established under federal
13 law.

14 C. In the event of a conflict between this act and applicable
15 federal grant requirements, federal requirements shall control.

16 D. Compliance with this act shall be a condition of eligibility
17 for receipt of state-administered funds or state-administered
18 federal funds.

19 E. To the extent practicable, the State Department of Health
20 shall accept existing federal or state reports in satisfaction of
21 reporting requirements under this act.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1202 of Title 63, unless there
24 is created a duplication in numbering, reads as follows:

1 This act applies only to homeless shelter providers receiving
2 state-administered funds or state-administered federal funds.

3 Providers receiving federal funds directly from a federal agency
4 without state administration are not subject to this act unless
5 otherwise required by state law.

6 SECTION 5. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1203 of Title 63, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The State Department of Health may promulgate rules strictly
10 limited to implementing the standards expressly authorized in this
11 section.

12 B. Rulemaking authority is confined solely to:

13 1. Basic life safety standards consistent with existing
14 applicable building and fire codes;

15 2. Minimum sanitation and hygiene standards;

16 3. Reporting procedures for material safety events;

17 4. Documentation verifying occupancy limits consistent with
18 local approvals;

19 5. Staff training standards limited to safety, emergency
20 response, and facility operations; and

21 6. Health or safety deficiencies within the homeless shelter
22 and the time period within which such deficiencies shall be
23 corrected.

24 C. The State Department of Health shall not:

- 1 1. Create or establish a statewide continuum of care structure;
- 2 2. Establish mandatory performance benchmarks or outcome
- 3 thresholds;
- 4 3. Create systemwide reduction targets;
- 5 4. Require submission of client-level personally identifiable
- 6 information;
- 7 5. Duplicate federal homeless management information system
- 8 (HMIS) reporting requirements;
- 9 6. Impose zoning or land use requirements;
- 10 7. Establish licensing requirements beyond those required by
- 11 law;
- 12 8. Regulate clinical or medical services unless required by
- 13 separate statute; or
- 14 9. Expand the scope of this act beyond providers receiving
- 15 state-administered funds or state-administered federal funds.

16 D. Any expansion beyond subsection B of this section requires
17 express legislative enactment.

18 SECTION 6. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1204 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 A. As a condition of eligibility for state-administered funds
22 or state-administered federal funds, a homeless shelter provider
23 shall submit to the Oklahoma Department of Commerce documentation
24 sufficient to demonstrate fiscal stability, as evidenced through

1 existing audit, financial reporting, or grant compliance
2 documentation.

3 B. The Department may require:

4 1. Audit documentation consistent with federal single audit
5 requirements when applicable;

6 2. Tiered financial review thresholds based on the amount of
7 state-administered funds or state-administered federal funds
8 received;

9 3. Financial statements appropriate to the level of funding
10 received; and

11 4. Documentation already required under federal or state grant
12 agreements.

13 C. The Department shall align reporting requirements with
14 existing federal and state grant documentation and shall, to the
15 extent practicable, accept substantially similar documentation in
16 satisfaction of this section.

17 SECTION 7. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1205 of Title 63, unless there
19 is created a duplication in numbering, reads as follows:

20 A. Providers shall submit annually, to the State Department of
21 Health, aggregate data including:

22 1. Authorized bed or unit capacity;

23 2. Average occupancy rates;

24 3. Aggregate counts of material safety events;

1 4. Aggregate counts of emergency responses;

2 5. Aggregate exits to permanent housing;

3 6. Aggregate returns to homelessness or unknown exits; and

4 7. Aggregate referrals to treatment or behavioral health
5 services.

6 B. Outcome data shall be used solely for transparency and
7 public planning purposes.

8 C. Funding eligibility shall not be conditioned on achieving
9 specific outcome percentages or performance benchmarks beyond those
10 required as a condition of receipt of state-administered funds or
11 state-administered federal funds.

12 D. Reports shall not include personally identifiable
13 information beyond what is required under applicable federal law.

14 E. The State Department of Health may share aggregate data with
15 the Department of Commerce.

16 SECTION 8. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1206 of Title 63, unless there
18 is created a duplication in numbering, reads as follows:

19 A. The State Department of Health shall maintain a complaint
20 process limited to health and safety compliance pursuant to Section
21 5 of this act.

22 B. The Oklahoma Department of Commerce shall maintain
23 administrative procedures related to financial compliance and
24 funding eligibility.

1 C. No provider shall retaliate against an employee, volunteer,
2 client, or other individual who submits a complaint in good faith.

3 SECTION 9. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1207 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Prior to any enforcement action pursuant to this section,
7 the State Department of Health shall provide written notice and a
8 reasonable opportunity to cure, as defined by rule, except in cases
9 of an imminent threat to life or safety.

10 B. If a condition presents an imminent threat to life or
11 safety, the State Department of Health may take immediate action
12 consistent with its statutory authority and shall notify the
13 Oklahoma Department of Commerce.

14 C. If a provider fails to cure a material health or safety
15 deficiency, the State Department of Health shall formally notify the
16 Oklahoma Department of Commerce.

17 D. Upon receipt of such notification, or upon independent
18 determination of financial noncompliance, the Oklahoma Department of
19 Commerce may:

20 1. Suspend, withhold, or declare ineligible the provider's
21 receipt of state-administered funds and state-administered federal
22 funds; and

23 2. Issue formal written recommendations to both the board of
24 county commissioners and the governing body of the municipality in

1 which the provider operates that the provider be restricted or
2 terminated from continuing to provide services.

3 E. Enforcement actions are administrative in nature.

4 F. Providers are entitled to appeal enforcement actions
5 pursuant to the Oklahoma Administrative Procedures Act.

6 G. Nothing in this act creates a private right of action.

7 H. Neither the State Department of Health nor the Oklahoma
8 Department of Commerce shall have authority to revoke or suspend
9 local permits, zoning approvals, or certificates of occupancy.

10 SECTION 10. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 1208 of Title 63, unless there
12 is created a duplication in numbering, reads as follows:

13 Nothing in this act supersedes or preempts local zoning, land
14 use, building, fire, health, or permitting authority, nor requires a
15 political subdivision to approve or site a homeless facility. Local
16 governments may adopt and enforce standards more stringent than
17 those established pursuant to this act.

18 SECTION 11. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1209 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 A. There is hereby created the Oklahoma Homeless Shelter
22 Standards Advisory Board.
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1 B. The Board shall be advisory only and shall consist of nine
2 (9) voting members. Recommendations shall not have the force of law
3 unless enacted by the Legislature.

4 C. The Commissioner of Health shall serve as chair and shall
5 vote only in the event of a tie.

6 D. Membership of the board shall consist of:

7 1. One member appointed by the Governor;

8 2. One member appointed by the Speaker of the Oklahoma House of
9 Representatives;

10 3. One member appointed by the President Pro Tempore of the
11 Oklahoma State Senate;

12 4. One county commissioner appointed by the Oklahoma
13 Association of County Commissioners;

14 5. One municipal representative appointed by the Oklahoma
15 Municipal League, preferably from a municipality with demonstrated
16 experience administering homeless shelter services;

17 6. One representative of a homeless services provider appointed
18 by the Governor;

19 7. One public health professional appointed by the Speaker of
20 the House;

21 8. One representative of law enforcement or emergency medical
22 services appointed by the President Pro Tempore of the Senate; and

23 9. One additional member appointed jointly by the Speaker of
24 the House and the President Pro Tempore of the Senate, preferably

1 from a rural community with demonstrated experience administering
2 homeless shelter services.

3 E. The Board shall:

4 1. Advise the State Department of Health regarding health and
5 safety rule development;

6 2. Advise the Oklahoma Department of Commerce regarding
7 financial reporting alignment;

8 3. Submit annual recommendations to the Legislature;

9 4. Obtain feedback from programs that this act applies to in
10 the development of standards and policies to ensure reasonableness
11 and feasibility; and

12 5. Assist in the development of resources that help guide
13 municipalities in the development of new shelters and support
14 existing providers in response to challenges and opportunities.

15 F. The Board may, by majority vote, call upon up to five (5)
16 at-large, non-voting subject matter experts for consultation. Such
17 individuals shall serve in an advisory capacity only and shall not
18 possess voting authority.

19 G. Members shall serve without compensation.

20 SECTION 12. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1210 of Title 63, unless there
22 is created a duplication in numbering, reads as follows:

23 The Oklahoma Homeless Shelter Standards Advisory Board shall
24 cease to exist five (5) years from the effective date of this act.

SECTION 13. This act shall become effective November 1, 2026.

Passed the House of Representatives the 25th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate